

Chandra Pal Singh v. State of U.P. (bill correction relegated to cl. 6.5)

High Court of Judicature at Allahabad · Division Bench · 6 January 2021 · WRIT - C No. - 25245 of 2020 · **Writ disposed; bill-correction claim relegated to Regulation 6.5.**

HEADNOTE

A writ seeking correction of a domestic electricity bill was disposed of without examining the bill on merits. The Court accepted that the appropriate remedy is a representation to the competent authority under Regulation 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider the claim forthwith.

FACTUAL SUMMARY

Chandra Pal Singh invoked the writ jurisdiction of the Allahabad High Court seeking a mandamus to respondent no. 3 to correct the electricity bill issued against his domestic connection no. 771718264559. Counsel for the petitioner, the Power Corporation, and the State were heard. The Corporation submitted that the competent authority under the U.P. Electricity Supply Code, 2005, not the writ court, was the forum for the bill-correction claim.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-alternate-remedy

HOLDING

A writ of mandamus seeking correction of a domestic electricity bill is not the appropriate forum; the consumer must approach the competent authority under Regulation 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider the claim forthwith. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court disposed of the writ for bill correction by relegating the petitioner to the competent authority under Regulation 6.5, without deciding the bill on merits. ¶ 1

6.5-representation-as-appropriate-remedy The Power Corporation's submission that Regulation 6.5 is the appropriate remedy for the bill-correction claim was accepted as correct and the petition was ordered accordingly. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DOMESTIC ELECTRICITY BILL

Merits of the bill-correction claim were not examined; the petitioner was relegated to Regulation 6.5. ¶ 1